

25VECV01337 25VECV01337

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 25VECV01337 Hearing Date: August 5, 2026 Dept: T

25VECV01337 Malek v Tarzana Villa

Defendant's Ex parte application to continue trial:

Tentative ruling: Trial is scheduled on 9/22/2026. Defendant seeks a continuance because it is still awaiting medical records because it waited until May of 2026 to take the plaintiff's deposition, and then it intentionally selected a mediation date three months after the trial date while ignoring the MSC order.

The court is not inclined to continue the trial because good cause has not been shown.

First, the court specifically stated in its order of 2/9/2026 that it does not intend to continue the trial date and the parties must be ready at the FSC.

Second, it is never acceptable to select a mediation date after the trial date given that there are hundreds of mediators in Los Angeles.

Third, the court order a MANDATORY SETTLEMENT CONFERENCE ON 2/9/2026 WITH A CUTOFF DAY WITHIN 60 DAYS OF TRIAL. An MSC is COURT ORDERED. There is no indication that this MSC has occurred. It is a court order and should not have been ignored.

Fourth, there is no specific information on what medical records were ordered and when, and what is the status, and no declaration of why they were not ordered earlier. Defendant filed its Answer 12 months ago and the court set the trial 13 months after the defendant's appearance. Why wasn't all of the discovery done months ago?

For these reasons, the court is inclined to order that no good cause is shown and the MSC take place and the trial proceed as scheduled.